

		jurisdiction on claims related to its activities in California under a specific jurisdiction analysis. The inquiry focuses on the relationship between the defendant, the forum, and the litigation. (<i>Walden v. Fiore</i> (2014) 571 US 277, 283-284.) For the state to exercise jurisdiction over a defendant consistent with due process, “the defendant’s suit-related conduct must create a substantial connection with the forum State.” (<i>Id.</i> at p. 284; <i>Bristol-Myers Squibb Co. v. Sup.Ct. of Calif., San Francisco County</i> (2017) 582 US 255, 262-268.) Such “specific” personal jurisdiction requires a showing of: (1) purposeful availment—the out-of-state defendant purposefully established contacts with the forum state; (2) arising out of—the plaintiff’s cause of action “arises out of” or is “related to” the defendant’s contacts with the forum state; and (3) reasonableness—the forum’s exercise of personal jurisdiction in the particular case comports with “fair play and substantial justice.” (<i>Burger King Corp. v. Rudzewicz</i> (1985) 471 US 462, 477-478; <i>Vons Cos., Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 446.) Plaintiff does not dispute that the defendant has resided in Arizona since August 2021. (<i>Fenton v. Bd. of Directors</i> (1984) 156 Cal.App.3d 1107, 1116 - “the test for determining a person’s domicile is physical presence plus an intention to make that place his permanent home.”) There is no evidence that Trevino has had any contact with California since August 2021 which related to the cats. There is no evidence the cats have resided anywhere but Arizona since August 2021. The alleged wrongful conduct of failing to return the cats occurred while Trevino and the cats resided in Arizona. While plaintiff argues the Defendant’s acts were “expressly aimed at plaintiff, a resident of the forum state,” such is insufficient. (<i>Walden v. Fiore</i> (2014) 571 U.S. 277, 289–90 – “mere injury to a forum resident is not a sufficient connection to the forum.”) Accordingly, plaintiff has failed to establish facts showing either general or specific jurisdiction. The motion is therefore GRANTED and the plaintiff’s complaint against Defendant Anthony Trevino is DISMISSED, without prejudice. <i>Mr. Trevino is ordered to give notice of this ruling.</i>
2.	Murphy v. General Motors, LLC 24-1403247	<i>(The Court will hear argument on the sanctions issue)</i>
3.	Marinez v. Garden Grove Post Acute LLC 24-1441969	<i>(No tentative, as this case appears to be related to 2 other matters in CX-102 and parties have failed to file required Notice of Related cases)</i>
4.	Mott v. Fortiva Financial, LLC 25-1476893	Before the Court is a motion to compel arbitration filed by defendant Fortiva Financial, LLC (Defendant) against plaintiff Lynda Mott (Plaintiff). For the reasons set forth below, the motion is DENIED. Defendant argues the Federal Arbitration Act (“FAA”) applies. The FAA generally governs arbitration in written contracts involving interstate